

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISIVISI IRAI ALFARO,

Petitioner

VS.

ABEL PADILLA JR.,

Respondent

) Case Number: FDI-24-800504

) Hearing Date: September 22, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ORDER SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1. The parties are Petitioner, Isivisi Irai Alfaro (Mother) and Respondent, Abel Padilla Jr. (Father). They share two minor children named Royce Padilla-Alfaro (DOB: 04/30/17) and Adrian Padilla-Alfaro (03/31/21).
2. On May 21, 2026, Mother filed an emergency Request for Order (RFO) seeking a modification of the existing custody and visitation (i.e., parenting time) orders. In particular, Mother was seeking sole legal and sole physical custody of the children with therapeutic supervised visitation to Father pending hearing. Matter was set for further hearing on June 4, 2026.
3. On May 21, 2026, the Court issued interim orders that Mother have sole legal and sole physical custody of the minor children. The Court also suspended Father's visitation.
4. On May 29, 2026, Father filed a Responsive Declaration to Mother's ex parte RFO wherein he asks this Court to deny all relief sought by Father. Mother states that all allegations included in Father's RFO were previously litigated. Mother concludes that Father has not made a showing of change in circumstance necessary to modify child custody orders.

1 5. On June 8, 2026, the matter was heard on the Court's Readiness calendar. The Court referred the
2 parties to Family Court Services (FCS) Mediation on July 14, 2026 and set a return hearing for
3 July 30, 2026.

4 6. On July 30, 2026, the Court issued some interim orders and continued the matter to September
5 22, 2026 for review of status. The Court ordered counsel for Father to prepare the Findings and
6 Order After Hearing. As of September 17, 2026, it has not been received by the Court. However,
7 the Court notes that counsel for Respondent has substituted out of the case.

8 7. On September 11, 2026, Mother filed a declaration, which has been read and reviewed by the
9 Court.

10 8. As of this Court's review, neither party has filed an update declaration with the Court.

11 **B. Tentative Ruling**

12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child(ren) is the United States.

16 2) The Court will modify the existing orders and issue the following orders:

17 a. Both parents shall have joint legal and joint physical custody.

18 b. The parents will exercise a 2/2/5 schedule:

19 I. Mother will have the children on Monday and Tuesday

20 II. Father will have the children on Wednesday and Thursday

21 III. The parents will alternate each weekend.

22 IV. The exchange days and times for each block of time will be at 7:30 p.m., on Sundays,
23 Tuesdays and Thursdays. The receiving parent will pick up the children from the other
24 parent.

25 V. The commencement date and time for this schedule will be Tuesday, September 22,
26 2026 at 7:30 p.m., wherein Father will pick up children from Mother. Father will have
27 the children from Tuesday, September 22, 2026 at 7:30 p.m. – Thursday, September
28 24, 2026 at 7:30 p.m., at which time, Mother will pick up the children from
29 Father. Mother shall then have the children from Thursday, September 24, 2026 at

1 7:30 p.m. – Tuesday, September 29, 2026 at 7:30 p.m., and the schedule will continue
2 as denoted above.

3 4) Father shall ensure that Royce is taken to ALL of his therapy and counseling appointments that
4 are scheduled during his time. If Father fails to take Royce to his appointments, the Court will
5 consider this is NOT being in the child's best interest and will consider giving Mother sole legal
6 and sole physical custody.

7 5) Father shall ensure that the children are taken to school and picked up on a timely basis.

8 6) Father and Mother shall enroll in a co-parenting class. They shall each complete 12
9 sessions. They do not have to do the class together, but must be ready to provide this Court with
10 their certificate, which proves completion, when the Court requests it. They shall enroll in the co-
11 parenting class no later than October 31, 2026.

12 7) The minor children shall not be left in the care and custody of any significant others, until further
13 order of the Court.

14 8) All prior orders, not in conflict, shall remain in full force and effect.

15 9) The Court will prepare this Findings and Order After Hearing, as well as the one from the July
16 30, 2026 hearing.